

MINUTES OF FIRST REGULAR MEETING
OF THE CITY COUNCIL
CITY OF SANTA CLARITA

Tuesday
December 15, 1987
7:30 p.m.

CALL TO ORDER

The first meeting of the City Council of the City of Santa Clarita was called to order at 7:30 p.m. by Mayor McKeon at the College of the Canyons Gymnasium, Valencia. Ca.

PRESENTATIONS

Presentations were made by the following: a plaque from the Independent Contract Cities Assoc.; plaques from the Cities of Norwalk, Artesia, Agoura Hills, and West Hollywood; the City of Lancaster presented a U.S. flag.

CITY CLERK REPORT

Carl Newton, City Attorney, reported that notices of the meeting were duly posted in accordance with the law. The City Manager, E. Fredrick Bien, informed the Council that the Certificate of Completion had been received from the Local Agency Formation Commission.

ITEM 8
RESOLUTION No. 87-1
APPOINTMENT OF
INTERIM CITY CLERK

The City Attorney introduced and read the title of Resolution No. 87-1, a resolution appointing an interim City Clerk. It was moved by Darcy, second by Boyer, to adopt Resolution No. 87-1. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-1 adopted.

It was moved by Boyer, second by Heidt that item 41, being Ordinance No. 87-10, be discussed this evening rather than on December 16th. With no objections, it was so ordered.

ITEM 10
RESOLUTION NO. 87-2
APPOINTMENT OF CITY
ATTORNEY

The City Attorney introduced and read the title of Resolution No. 87-2, a resolution appointing a City Attorney. It was moved by Darcy, second by Heidt to adopt Resolution No. 87-2. With no objections, it was so ordered.

ITEM 10a
ORDINANCE NO. 87-10
MORATORIUM ON
CUTTING & REMOVING
OAK TREES

The City Attorney introduced and read the title of Ordinance No. 87-10, an ordinance imposing a moratorium on the cutting and removal of oak trees in the City of Santa Clarita. It was moved by Boyer, second by Darcy to waive further reading of the ordinance and to adopt Ordinance No. 87-10 as an urgency ordinance. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Ordinance No. 87-10 adopted as an urgency ordinance.

ITEM 11
ORDINANCE NO. 87-1
ADOPTION OF LOS
ANGELES COUNTY CODE

The City Attorney introduced and read the title of Ordinance No. 87-1, an ordinance adopting the Los Angeles County code and other relevant non-codified Los Angeles County ordinances as City ordinances for a period of 120 days.

It was moved by Darcy, second by Koontz to waive further reading of the ordinance and adopt Ordinance No. 87-1 as an urgency ordinance. On roll call vote:

Ayes: Boyer, Darcy, Heidt, Koontz, McKeon

Noes: None

Ordinance No. 87-1 adopted as an urgency ordinance.

ITEM 12
ORDINANCE No. 87-2
ADOPTION OF SANTA
CLARITA MUNICIPAL
CODE

The City Attorney introduced and read the title to Ordinance No. 87-2, an ordinance adopting the Santa Clarita Municipal Code and enacting Titles 1, 2, & 3 thereof relating to general provisions, administration and personnel, and revenue and finance, as an urgency ordinance. It was moved by Koontz, second by Heidt to waive further reading of the ordinance and adopt Ordinance No. 87-2 with amendments, as an urgency ordinance. On roll call vote:

Ayes: Boyer, Darcy, Heidt, Koontz, McKeon

Noes: None

Ordinance No. 87-2 adopted.

ITEM 13
RESOLUTION No. 87-3
APPOINTMENT OF AN
INTERIM CITY MANAGER

The City Attorney introduced and read the title of Resolution No. 87-3, a resolution appointing an interim City Manager. It was moved by Koontz, second by Boyer to adopt Resolution No. 87-3. On roll call vote:

Ayes: Boyer, Darcy, Heidt, Koontz, McKeon

Noes: None

Resolution No. 87-3 adopted.

ITEM 14
AGREEMENT FOR
INTERIM CITY MANAGER

The City Attorney explained to Council that this item is on the agenda to approve an agreement with the interim City Manager and to authorize the Mayor to sign the agreement. It was moved by Boyer, second by Koontz to approve the agreement. On vote: all councilmembers approved.

ITEM 15
RESOLUTION NO. 87-4
DESIGNATION FOR
POSTING RESOLUTIONS
AND ORDINANCES

The City Attorney introduced and read the title to Resolution No. 87-4, a resolution designating locations for posting of ordinances and/or resolutions required by law to be published or posted. It was moved by Darcy, second by Koontz to adopt Resolution No. 87-4. On roll call vote:

Ayes: Boyer, Darcy, Heidt, Koontz, McKeon

Noes: None

Resolution No. 87-4 adopted.

ITEM 16
RESOLUTION NO. 87-5
ESTABLISHING AN
ADDRESS

The City Attorney introduced and read the title to Resolution No. 87-5 a resolution establishing an address for the receipt of U. S. Mail. An amendment to the address in this resolution was made showing the address to be 19425-B Soledad Cyn. Rd., Canyon Country, 91351. It was moved by Koontz, second by Boyer to adopt Resolution No. 87-5 as amended. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-5 adopted.

ITEM 17
RESOLUTION No. 87-6
AUTHORIZING THE
MAYOR & CITY CLERK
TO FILE STATEMENT
OF BOUNDARY CREATION

The City Attorney introduced and read the title to Resolution No. 87-6 a resolution authorizing the Mayor and the interim City Clerk to prepare, execute and file the Statement of Boundary Creation required by Section 54900 of the Government Code of the State of California and ordering the utilization of the regular county assessment role. It was moved by Boyer, second by Koontz to adopt Resolution No. 87-6. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-6 adopted.

ITEM 18
RESOLUTION No. 87-7
AUTHORIZING FILING
OF DOCUMENTS WITH
STATE & COUNTY

The City Attorney introduced and read the title to Resolution No. 87-7 a resolution authorizing the filing of documents with State and County officers. It was moved by Darcy, second by Koontz to adopt Resolution No. 87-7. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-7 adopted.

ITEM 19
ORDINANCE 87-3
TRANSFERRING
ASSESSMENT & TAX
COLLECTION DUTIES
TO THE COUNTY

The City Attorney introduced and read the title of Ordinance No. 87-3 an ordinance transferring assessment and tax collection duties to the County of Los Angeles Assessor and Tax Collector and providing for its adoption as an urgency ordinance. It was moved by Koontz, second by Darcy to waive further reading of the ordinance and adopt Ordinance 87-3 as an urgency ordinance. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Ordinance No. 87-3 adopted as an urgency ordinance.

ITEM 20
RESOLUTION NO. 87-8
APPOINTMENT OF
ACTING CITY
TREASURER

The City Attorney introduced and read the title of Resolution No. 87-8 a resolution appointing an acting City Treasurer. It was moved by Darcy, second by Koontz to adopt Resolution No. 87-8 and to name Interim City Manager, Fred Bien, as acting City Treasurer. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-8 adopted.

ITEM 22
RESOLUTION No. 87-9
APPROVAL AND
ACCEPTANCE OF
SURETY BONDS

The City Attorney introduced and read the title to Resolution No. 87-9, a resolution approving and accepting surety bonds. It was moved by Darcy, second by Boyer to adopt Resolution No. 87-9. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-9 adopted.

ITEM 23
RESOLUTION No. 87-10
APPROVAL AND
ACCEPTANCE OF
INSURANCE COVERAGE

The City Attorney introduced and read the title to Resolution No. 87-10, a resolution approving and accepting insurance coverage. It was moved by Darcy, second by Koontz to adopt Resolution No. 87-10. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-10 adopted.

ITEM 24
RESOLUTION NO. 87-11
APPOINTMENT OF
CITY OFFICIALS

The City Attorney introduced and read the title to Resolution No. 87-11, a resolution appointing certain County officials to serve as City officials of the City of Santa Clarita. It was moved by Boyer, second by Heidt to adopt Resolution No. 87-11. The offices affected are: District Attorney designated as acting City Prosecutor; County Public Works Director designated as City Engineer; Road Commissioner designated as Superintendent of Streets; Director of Building and Safety designated as City Director of Building and Safety; Planning Director designated as City Planning Director; County Sheriff designated as Chief of Police; and County Fire Chief designated as City Fire Chief. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-11 adopted.

ITEM 25
RESOLUTION NO. 87-12
PETTY CASH FUND

The City Attorney introduced and read the title to Resolution No. 87-12 and stated that the petty cash will be in the amount of \$100 rather than \$500. It was moved by Darcy, second by Boyer to adopt Resolution No. 87-12. On vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-12 adopted.

ITEM 26
RESOLUTION NO. 87-13
ADOPT CONFLICT
OF INTEREST CODE

The City Attorney introduced and read the title to Resolution No. 87-13 a resolution adopting a conflict of interest code. It was moved by Koontz second by Darcy to adopt Resolution No. 87-13. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-13 adopted.

- ITEM 27
RESOLUTION No.87-14
REQUEST THAT THE
HIGHWAY PATROL
PROVIDE TRAFFIC
ENFORCEMENT
- The City Attorney introduced and read the title to Resolution No. 87-14 a resolution requesting the California Highway Patrol to continue to provide traffic enforcement within the City of Santa Clarita. It was moved by Boyer, second by Heidt to adopt Resolution No. 87-14. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-14 adopted.
- ITEM 28
RESOLUTION NO.87-15
REQUEST THAT COUNTY
CONTINUE TO FURNISH
SERVICES
- The City Attorney introduced and read the title to Resolution No. 87-15, a resolution requesting continuation of services by the County of Los Angeles. It was moved by Koontz, second by Boyer to adopt Resolution No. 87-15. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-15 adopted.
- ITEM 29
ORDINANCE NO.87-4
ESTABLISHMENT OF
SALES & USE TAX
ORDINANCE
- The City Attorney introduced and read the title of Ordinance No. 87-4, an ordinance imposing a sales and use tax to be administered by the State Board of Equalization providing penalties for violations and providing for its adoption as an urgency ordinance. It was moved by Boyer, second by Heidt to waive further reading and adopt Ordinance No. 87-4 as an urgency ordinance. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Ordinance No. 87-4 adopted as an urgency ordinance.
- ITEM 30
RESOLUTION NO.87-16
AUTHORIZING
EXECUTION OF
AGREEMENT WITH
STATE BOARD OF
EQUALIZATION
- The City Attorney introduced and read the title of Resolution No. 87-16, authorizing execution of an agreement with the State Board of Equalization regarding sales and use taxes. It was moved by Darcy, second by Heidt to adopt Resolution No. 87-16. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: Noes
Resolution No. 87-16 adopted.
- ITEM 31
RESOLUTION NO.87-17
ESTABLISHMENT OF
DEADLINE FOR AGENDA
ITEMS
- The City Attorney reported that in Section 2 of this resolution, the deadline for preparation of agenda items would be 5:00 p.m. the Thursdays before the Council meetings, in place of Wednesdays. It was moved by Koontz, second by Boyer that Resolution No. 87-17 be adopted with the change. On roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Resolution No. 87-17 adopted.

ITEM 32 The City Attorney introduced and read Ordinance No.
ORDINANCE No. 87-5 87-5, an ordinance authorizing the levy of a
ESTABLISHMENT OF transcient occupancy tax and providing for its
A TRANSIENT adoption as an urgency ordinance. It was moved by
OCCUPANCY TAX Heidt, second by Koontz to waive further reading of
 the ordinance and to adopt Ordinance No. 87-5. On
 roll call vote:
 Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
 Noes: None
 Ordinance No. 87-5 adopted as an urgency ordinance.

ITEM 33 The City Attorney suggested that Ordinance No. 87-5
ORDINANCE No. 87-6 be continued to the meeting of December 16, 1987.
REVIEW & APPROVAL It was moved by Heidt, second by Darcy that item 33
OF DEVELOPMENT be continued to December 16th. On roll call vote:
PROJECTS APPROVED Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
BY COUNTY Noes: None
 Motion approved.

ITEM 34 The City Attorney introduced Resolution No. 87-18
RESOLUTION #87-18 approving the temporary location of the City offices
TEMPORARY LOCATION as 261111 Bouquet Cyn., and the business hours as
AND BUSINESS HOURS being 8 a.m. to 5 p.m. Monday through Friday. It was
 moved by Darcy, second by Boyer to adopt Resolution
 No. 87-18. On roll call vote all councilmembers
 adopted Resolution No. 87-18.

ITEM 35 The City Attorney introduced by title Resolution No.
RESOLUTION #87-19 87-19 providing for the enforcement by the County
ENFORCEMENT OF Health Officer of state law and regulations relating
PUBLIC HEALTH LAWS to public health. It was moved by Darcy, second by
 Koontz to adopt Resolution No. 87-19. On roll call
 vote:
 Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
 Noes: None
 Resolution No. 87-19 adopted.

ITEM 36 The City Attorney introduced and read the title to
ORDINANCE NO.87-7 Ordinance No. 87-7 an ordinance prescribing
DESIGNATION OF imprisonment in the County jail for violations of
COUNTY JAIL City ordinances and declaring this ordinance to be an
 urgency ordinance. It was moved by Boyer, second by
 Koontz to waive further reading of the ordinance and
 adopt Ordinance No. 87-7 as an urgency ordinance. On
 vote:
 Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
 Noes: None
 Ordinance No. 87-7 adopted as an urgency ordinance.

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ITEM 37
ORDINANCE NO. 87-8
MORATORIUM ON
CERTAIN REAL
PROPERTY

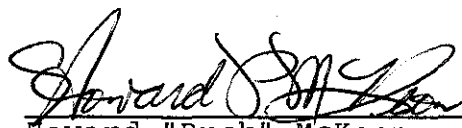
The City Attorney introduced and read the title to Ordinance No. 87-8, an ordinance imposing a moratorium on certain real property within the City and providing for its adoption as an urgency ordinance. It was moved by Boyer, second by Darcy to waive further reading of the ordinance and adopt the ordinance. After discussion, on roll call vote:
Ayes: Boyer, Darcy, Heidt, Koontz, McKeon
Noes: None
Ordinance No. 87-8 adopted as an urgency ordinance.

ITEM 38
RESOLUTION #87-20
APPROVAL OF COUNTY
SERVICE CONTRACTS

The City Attorney recommended that this item be referred to the City Attorney.
It was moved by Boyer, second by Koontz to refer this item to the City Attorney and to continue this item to December 16th. On vote:
Ayes: Boyer, Heidt, Koontz, McKeon
Noes: None
Abstain: Darcy
Motion approved.

ADJOURNMENT

Mayor McKeon adjourned the meeting to December 16, 1987, 7:30 p.m. Hart High School, 24825 No. Newhall Ave., Newhall.


Howard "Buck" McKeon
Mayor

ATTEST:


E. Fredrick Bien
City Clerk

The original notes of this meeting were taken by someone other than City staff and we have been engaged in the process of getting them transcribed.